

25STCV20135 25STCV20135

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C08%2F05%2F2026

Source SHA-256: e557274b35775a349c9e1127fa0fbca2223d01c78561845b861b51159857145f

Case Number: 25STCV20135 Hearing Date: August 5, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 5, 2026 TRIAL DATE: Not Set

CASE: Joseph R. Lovell, et al. v. Nissan North

America, Inc.

CASE NO.: 25STCV20135

MOTION

TO COMPEL INITIAL DISCLOSURES AND FOR SANCTIONS

MOVING PARTIES: Plaintiffs Lisa A. Norris-Lovell and Joseph R. Lovell

RESPONDING PARTY: None

CASE HISTORY:

06/30/25: Complaint filed.

TENTATIVE RULING:

Plaintiff's

unopposed motion is GRANTED. Defendant is ordered to produce the documents under Code of Civil Procedure section 871.26(h) within 20 days of this order.

Plaintiff's request for sanctions is GRANTED.

Defendant and counsel of record are ordered to pay Plaintiff's counsel sanctions in the amount of \$2,500 pursuant to section 871.26(j)(1) within 20 days of this order.

Moving Parties to
give notice.

BACKGROUND

This is a lemon law action.

Plaintiff moves to compel Defendant's
initial disclosures and seeks sanctions.

DISCUSSION:

Legal Standard

In
civil actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Defendants
must provide the documents outlined in subdivision (h), as follows:

The defendant or manufacturer
shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual
for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of
the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to

evaluate customer requests for restitution or replacement pursuant to “Lemon Law” claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle.

(Code Civ. Proc., § 871.26(h).)

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(Code Civ. Proc., § 871.26(j)(1).)

Motion to Compel and for Sanctions

Plaintiff

moves to compel Defendant’s initial disclosures under Code of Civil Procedure section 871.26(h), arguing that Defendant filed its Answer on December 22, 2025, and the 60-day deadline for initial disclosures has expired. Plaintiff argues Defendant has failed to comply with its statutory obligation.

In response

to Plaintiff’s meet and confer efforts, on January 8, 2026, Defendant asked if Plaintiff would agree that Defendant serves disclosures in 50 cases per month starting with the oldest cases first. Plaintiff argues despite this, Defendant failed to comply. (Hill Decl., Exh. 1.)

As there is

evidence Defendant has not provided the initial disclosures, and Defendant has failed to file an opposition contending otherwise, Plaintiff's motion is GRANTED.

Further, Defendant has failed to show good cause for the failure to comply; thus, the Court also grants Plaintiff's request for \$2,500 in sanctions against Defendant pursuant to section 871.26(j)(1).

CONCLUSION:

Accordingly, Plaintiff's unopposed motion is GRANTED. Defendant is ordered to produce the documents under Code of Civil Procedure section 871.26(h) within 20 days of this order.

Plaintiff's request for sanctions is GRANTED. Defendant and counsel of record are ordered to pay Plaintiff's counsel sanctions in the amount of \$2,500 pursuant to section 871.26(j)(1) within 15 days of this order.

Moving Parties to
give notice.

IT IS SO ORDERED.

Dated: August 5, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in

whole or in part.